

pursuant to Code Civil Procedure section 391.1, subdivision (a) is GRANTED.

Defendants' Request for Judicial Notice

Defendants request judicial notice of the following documents:

- Exhibit A - The order of the Orange County Superior Court issued on October 3, 2024 in *Young v. Byars, et al.* (Case No. 30-2017-00924659-CU-FR-CJC).
- Exhibit B - The order of the United States District Court for the Central District of California issued on May 11, 2026 in the case of *Young v. Griffin, et al.* (Case No. 8:25-cv 00762-MRA-ADS).

A court may take judicial notice of records of any court of this state, of the United States, or of any state of the United States. (Evid. Code § 452, subd. (d).) While “[a] court may take judicial notice of the *existence* of each document a court file, [it] can only take judicial notice of the *truth* of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (*People v. Thacker* (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)

The Court GRANTS Defendants’ request for judicial notice.

Legal Standard

Code of Civil Procedure section 391.1 provides:

In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.

“When considering a motion to declare a litigant vexatious under section 391.1, the trial court performs an evaluative function. The court must weigh the evidence to decide both whether the party is vexatious based on the statutory criteria and whether he or she has a reasonable probability of prevailing.” (*Golin v. Allenby* (2010) 190 Cal.App.4th 616, 635 [citation omitted].) “Accordingly, the court does not assume the truth of a litigant’s factual allegations and it may receive and weigh evidence before deciding whether the litigant has a reasonable chance of prevailing. (*Ibid.* [citation omitted].) The burden on the motion is on the moving party to show the plaintiff

has no reasonable likelihood of prevailing in the action. (*Id.* at p. 640 [citation omitted].)

Whether Plaintiffs are Vexatious Litigants

Plaintiffs were deemed vexatious litigants on 6/26/23 in the *Young v. Byars* matter (Case No. 2017-00924659), which was affirmed by the Court of Appeal. (Ammar Decl., ¶ 19, Exs. I and J.)

Thus, the Court finds Plaintiffs have been deemed vexatious litigants.

Whether Plaintiffs Have a Reasonable Probability of Prevailing

Plaintiffs bring 11 causes of action in their amended complaint. Underlying each of the causes of action are Plaintiffs' contentions Defendants fraudulently obtained Plaintiffs' consent to assign their judgments to Collect Co.

This issue has been addressed repeatedly, including in this action and the *Byars* action, and found to lack merit each time.

Primarily, Plaintiffs contend they never executed any Client Agreement with Collect Co and the Adobe Sign records and metadata do not reflect Plaintiffs' execution of a "Client Agreement." (J. Young Decl. ¶¶ 3-7, 17-18.)

Plaintiffs filed an appeal of various orders in the *Byars* matter. In affirming those orders, the Court of Appeal discussed the background of that case in which it stated Plaintiffs "have become their own worst enemy" and have engaged in "intransigent conduct." (Ammar Decl., Ex. J at p. 2.)

The Court noted Plaintiff filed an ex parte application to "Rescind (Vacate) 'Acknowledgment of Assignment of Judgment' Filed by [Collect Co.] and to Terminate any Actions by [Collect Co.]," which was denied. The Court stated, "In their joint sworn declaration filed in support of the ex parte application, plaintiffs acknowledged signing and notarizing the Assignment, and they attached email correspondence between them and Collect Co. showing they had signed the Agreement electronically. Although plaintiffs asserted they could not remember signing the Agreement, they stated: "[i]f we did send our electronic signatures, it must have been done based on the trust to [the attorney with whom they had met] and the signatures must have been sent out without understanding or knowledge of the content. In other words, the 'Judgment Agreement' were [sic] electronically signed without any discussion and explanation by an attorney to us." (Ammar Decl., Ex. J at p. 5.)

The Court further stated: